

2:00 PM

LINE 3

25-CIV-04686

STEPHANIE LIM VS. ELEXUM, ET AL

STEPHANIE LIM
ELEXUM

CHRIS QUATTROCIOCCHIE
THOMAS J. WALSH

MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Before the Court is Plaintiff Stephanie Lim’s unopposed motion for an order granting leave to file a First Amended Complaint (“FAC”).

Initially, the Court observes that Plaintiff’s notice of hearing provides the improper address for the hearing because the matter was reassigned to the Honorable David A. Silberman, Department 11, on May 11, 2026. Department 11 is not located in Redwood City as the notice states, but instead at the Central Branch Courthouse, Courtroom G, at 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, rule 3.1110 (the Notice “must specify” the location of the hearing). While it remained Plaintiff’s obligation to correct the notice, it is both understandable and harmless and the error is waived.

Next, the Court notes Plaintiff’s motion includes three exhibits, but they are not properly bookmarked. That is, “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” Cal. Rules of Court, rule 3.1110(f)(4); *see also* San Mateo County Superior Court, L.R. 3.3 (“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”). Additionally, the motion contains two Exhibit A’s, both the amended complaint and what appears to be one of two exhibits to the complaint (although oddly neither are referenced in the complaint). For this reason, electronic bookmarking is especially useful to avoid either uneconomic use of the Court’s time in the best case, or inaccuracy at the worst.

In any event, the instant motion requests leave to eliminate the fourth cause of action for breach of contract raised in plaintiff’s complaint filed June 20, 2025. The motion is unopposed and plaintiff asserts that Defendant Elexum has no objection to the filing of the attached First Amended Complaint (the Court noted that she is silent as to Apple and fails to provide any admissible evidence in support of the assertion, regardless).

Nevertheless, motions for leave to amend the pleadings are left to the sound discretion of the trial court judge. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” Code Civ. Proc. § 473 (a)(1); Code Civ. Proc. § 576. Under code section 576 a “judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” *McMillin v. Eare* (2021) 70 Cal.App.5th 893, 909 (*italics in original omitted*).

Accordingly, the Motion is GRANTED. Plaintiff shall file the FAC within 10 days of the date of this Order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, plaintiff's counsel shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 4

26-CIV-01347

MARSH & MCLENNAN AGENCY LLC VS. ELMER "RICK" FERGUSON

MARSH & MCLENNAN AGENCY LLC
ELMER "RICK" FERGUSON

BENJAMIN A EMMERT
PRO/PER

RESPONDENT ELMER "RICK" FERGUSON'S MOTION TO VACATE ENTRY OF SISTER-STATE JUDGMENT AND/OR IN THE ALTERNATIVE TO STAY ENFORCEMENT

TENTATIVE RULING:

For the reasons stated below, Defendant/Judgment Debtor Elmer "Rick" Ferguson's unopposed "Motion to Vacate Entry of Sister-State Judgment and/or in the Alternative, to Stay Enforcement," filed May 18, 2026, is DENIED.

The Motion has not been properly served

Defendant/Judgment Debtor Ferguson has not demonstrated proper service of this Motion. On June 16, 2026, Ferguson filed a Proof of Service, which states the following:

[On May 15, 2026], I electronically served the following documents (exact titles):

Def Elmer Ferguson Response to Pltf Marsh Notice of Entry of Judgement on S-S Judgement

Also on June 16, 2026, Ferguson filed a document requesting that the Court Clerk file an attached Proof of Service. This document provides, in part:

Dear Clerk:

Please file the enclosed Corrected Proof of Electronic Service ...

The attached Proof of Service does not, itself, have a file stamp, and thus, arguably, it has not yet been properly filed. But even assuming that it has been filed, the attached Proof of Service does not indicate that Plaintiff served the present Motion to Vacate. Instead, it states that the "exact title" of the served document reads as follows:

Def Elmer Ferguson Response to Pltf Marsh Notice of Entry of Judgement on S-S Judgement

Accordingly, there is no Proof of Service on file stating that Mr. Ferguson served, on Plaintiff's counsel, his May 18, 2026 "Motion to Vacate Entry of Sister-State Judgment and/or in the Alternative To Stay Enforcement."

The Court notes a few additional items. First, it seems highly unlikely in context that the law firm of Littler Mendelson would not have responded to this Motion had it been properly served. Second, the only evidence supporting Judgment Debtor Ferguson's present Motion to Vacate is his attached declaration, which is not signed under penalty of perjury, and therefore, does not constitute admissible evidence. Code
